



## 5 Responses to Practice Problems

These responses are to the March 2013 'Practice Problems' exam paper.

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## 5 Responses to Practice Problems

(Memo to Sue Allen)

## NDG Architects Ltd

Interoffice memo (email)

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To: Sue Allen

Cc:

From: Jenny Carlin

Date: 6<sup>th</sup> March 2013

Re: CPD/PDP

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Sue,

Thanks for your email. I have collated the information you requested and my briefing note and personal development plan are attached to this memo.

It is worth noting that the RIBA website ([www.architecture.com](http://www.architecture.com)) provides online CPD recording and also offers some interesting notes for practices. For individual needs, there are a set of study notes listing specific topics which could be considered for CPD. These could also prove useful when reviewing the practice development plan.

Maybe James, Belinda, Michael and Sue could get the ball rolling and offer a presentation on their areas of expertise? This would help to promote the office community and also educate staff on the knowledge available under our own roof. Maybe the practice could provide lunch and combine it with a general office meeting (covering HR, office maintenance, events, staff news etc.) on a regular basis; I've seen this done and it really helps to promote a feeling of teamwork and communication.

I hope I've covered everything you need, but please let me know if you have any questions.

Kind regards

Jenny Carlin

Architectural Assistant

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## Briefing Note

**Title:** Practice Development Plan Strategy 2013

**Compiled by:** Jenny Carlin

**Date:** 6<sup>th</sup> March 2013



How the practice might address its strategy for training and development and CPD – Practice Development Plan:

As a chartered practice, we will have signed a declaration that we have a system for managing CPD in place. There is no set rule for the system the practice puts into place, and there is no minimum amount of CPD we need to provide.

How we should arrive at a PDP:

Firstly we can review the RIBA CPD Providers Network Directory for a monthly lunchtime product seminar and then top this up with trade press reading. We should consider appointing a HR manager, and manage training budgets and yearly appraisals linked with individual training plans. If we have Investors in People status and have some sort of accredited QA system (i.e. ISO 9001:2008 Quality management systems) in place we should have a management system in place. If not we should consider attaining these accreditations.

How individual staff member's plans link:

The directors (James and Belinda) and associate directors (Michael and Sue) can be assigned 2 or 3 technical staff members each to carry out informal monthly appraisals/performance reviews. These will involve reviewing each staff members Personal Development Plan (PDP), approving any fees (or raising these at a director's meeting) and identifying training and development needs.

Annual formal appraisals can carry out the same procedure on a more general level, including review of the previous year.

All development and training should be planned in line with individual *and* business needs. A flexible system will take last-minute business needs into account, helping the practice to develop staff, business, and career, keeping the team and directors up to date and competent, helping clients, and help to gain clients, and take on new areas of specialism and expertise.

How to determine the budget:

The practice needs to consider what we can spend per head, how much time can we afford to devote, how many hours can we make available to CPD in the practice, can we share CPD with other local practices, how much can we take advantage of people sharing knowledge, and how much time can staff give to informal methods of learning such as reading the construction press.

Monthly requests for training can be reviewed at directors meetings. An annual budget can also be set for formal lunchtime lectures and office visits to buildings, projects or industry shows.

NDG Architect's current expertise and training:

Marketing, building conservation, sustainability, quality management – the staff members with these expertise could consider presenting a CPD lecture to the office on the subject.

NDG Architect's desirable expertise and training this year includes:

Care home design and relevant legislation (Access for all: universal/inclusive design), RIBA Plan of Work 2013 (general staff updates), Updates to the Building Regulations, in particular Part L, BIM/Revit training.

### References:

RIBA. 2013. Notes for Practices. RIBA. [Online] 2013. [Cited: 6<sup>th</sup> March 2013.]

<http://www.architecture.com/EducationAndCareers/CPD/NotesforPractices.aspx>

RIBA. *Chartered Practice Manual 2010-2011*

NDG Architects Ltd

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## RIBA Continuing Professional Development

## Personal Development Plan

Name: Jenny Carlin

RIBA number: 11627778

PDP Start Date: 6th March 2013

PDP End Date: 5th March 2014

| Development Aim | What areas of knowledge do you want to develop? Why?                      | How do you want to use them?                                     | Relevant RIBA Curriculum Topic                                                          | Planned activities for the development aim eg, h |                                                  |                                                          |
|-----------------|---------------------------------------------------------------------------|------------------------------------------------------------------|-----------------------------------------------------------------------------------------|--------------------------------------------------|--------------------------------------------------|----------------------------------------------------------|
|                 |                                                                           |                                                                  |                                                                                         | Activity number                                  | Planned Activity                                 | Delivery mechanisms                                      |
| 1               | Technical use of BIM                                                      | Directly on projects, and in regards to the RIBA Plan of Work.   | Internal management – professionalism, practice, business and management                | 1.1                                              | Learn Revit                                      | Personal experimentation and following tutorials online. |
|                 |                                                                           |                                                                  |                                                                                         |                                                  |                                                  | Formal course                                            |
|                 |                                                                           |                                                                  |                                                                                         | 1.2                                              | Review office BIM policy document                | Reading                                                  |
|                 |                                                                           |                                                                  |                                                                                         | 1.3                                              | Review BIM overlay to the RIBA Plan of Work      | Reading                                                  |
| 2               | Review RIBA Plan of Work 2013 (formally launched on 21 May 2013)          | General office use and maintaining quality.                      | Compliance – legal, regulatory and statutory framework and processes                    | 2.1                                              | Review documentation and new online tools        | Reading online                                           |
|                 |                                                                           |                                                                  |                                                                                         | 2.2                                              | Read 'Guide to using the RIBA Plan of Work 2013' | Reading                                                  |
| 3               | Knowledge of environmental design accreditation, specifically Passivhaus. | Eventually take the Certified Passivhaus Designer course (CEPH)  | Climate – sustainable architecture                                                      | 3.1                                              | Arrange a Passivhaus CPD                         | CPD lunchtime lecture                                    |
|                 |                                                                           |                                                                  |                                                                                         | 3.2                                              | Passivhaus online training (free)                | Online training mini-courses                             |
|                 |                                                                           |                                                                  |                                                                                         | 3.3                                              | Passivhaus introduction and workshop             | One day course at BRE Watford                            |
| 4               | Health and Safety                                                         | General office use and maintaining quality.                      | Being safe – health and safety                                                          | 4.1                                              | Seminar from Core CPD Programme (RIBA)           | online                                                   |
| 5               | Product Training                                                          | General office use and maintaining quality, specifying, Stage E+ | Designing and building it – structural design, construction, technology and engineering | 5.1                                              | In house - organised by the CPD coordinator      | Lunchtime lectures                                       |
| 6               | General reading and keeping up to date with industry issues and news.     | General office use and maintaining quality.                      |                                                                                         | 6.1                                              | Reading journals BD, RIBA Journal and AJ         | Office and personal magazine subscriptions (and online)  |
| Total           |                                                                           |                                                                  |                                                                                         |                                                  |                                                  |                                                          |

## NOTES

1 – you learned little.

2 – your knowledge has increased in a general way.

Learning points 3 – you have increased your knowledge of a subject in a detailed way.

4 – the activity significantly benefited you in terms of knowledge and skills and you are expert in the subject.

35 hours of CPD; along with at least 20 hours of CPD on core curriculum topics (at least two hours on each topic each year); and The other 15 hours of CPD can be from subjects you have chosen, relevant to your own architectural learning needs.

100 points which you give to activities where you are using self-reflection;

At least half of your CPD activity, where possible, structured;

A record of your CPD online using our CPD recording manager.



| How to achieve your aims (specific courses, research/reading, library searches, etc): |                           |                                                      |                                                          |                               |                                |                                | Comments                                                                     | Approved by Director at annual/yearly appraisal? (Director's Signature) | Were you able to achieve this aim? If not, why not? |
|---------------------------------------------------------------------------------------|---------------------------|------------------------------------------------------|----------------------------------------------------------|-------------------------------|--------------------------------|--------------------------------|------------------------------------------------------------------------------|-------------------------------------------------------------------------|-----------------------------------------------------|
| Structured or Informal                                                                | Intended date to complete | CDP duration for curriculum topics (hours over year) | CDP duration for NON curriculum topics (hours over year) | Learning Points (per session) | Total Learning Points for Year | Estimate cost (excluding VAT.) |                                                                              |                                                                         |                                                     |
| Informal                                                                              | Sep-13                    | 15                                                   |                                                          | 3                             | 3                              | £0.00                          |                                                                              |                                                                         |                                                     |
| Structured                                                                            | Sep-13                    | 8                                                    |                                                          | 4                             | 4                              | £150.00                        |                                                                              |                                                                         |                                                     |
| Informal                                                                              | Sep-13                    | 2                                                    |                                                          | 3                             | 3                              | £0.00                          |                                                                              |                                                                         |                                                     |
| Informal                                                                              | Sep-13                    | 2                                                    |                                                          | 3                             | 3                              | £0.00                          |                                                                              |                                                                         |                                                     |
| Informal                                                                              | Jun-13                    | 2                                                    |                                                          | 2                             | 2                              | £0.00                          |                                                                              |                                                                         |                                                     |
| Informal                                                                              | Jun-13                    | 1.5                                                  |                                                          | 2                             | 2                              | £0.00                          |                                                                              |                                                                         |                                                     |
| Formal                                                                                | Next available date       | 1                                                    |                                                          | 2                             | 2                              | £0.00                          |                                                                              |                                                                         |                                                     |
| Informal                                                                              | Dec-13                    | 4                                                    |                                                          | 3                             | 3                              | £0.00                          |                                                                              |                                                                         |                                                     |
| Formal                                                                                | Next available date       | 8                                                    |                                                          | 4                             | 4                              | £350.00                        | I would partially fund this if it was over the office CPD budget.            |                                                                         |                                                     |
| Formal                                                                                | Jul-13                    | 2                                                    |                                                          | 2                             | 2                              | £0.00                          |                                                                              |                                                                         |                                                     |
| Formal                                                                                | Once a month              | 12                                                   |                                                          | 2                             | 24                             | £47.14                         | Total cost for 14 technical staff members in attendance = £660               |                                                                         |                                                     |
| Informal                                                                              | Every month               |                                                      | 25                                                       | 2                             | 50                             | £10.86                         | Total cost for 14 technical staff members for one office subscription = £152 |                                                                         |                                                     |
|                                                                                       |                           | 57.5                                                 | 25                                                       | 32                            | 102                            | £558.00                        |                                                                              |                                                                         |                                                     |
| Minimum 20 Minimum 15                                                                 |                           |                                                      |                                                          |                               |                                |                                |                                                                              |                                                                         |                                                     |





(Memo to George Ellis)

NDG Architects Ltd

Interoffice memo (email)

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To: George Gee

Cc: Belinda Carter

From: Jenny Carlin

Date: 6<sup>th</sup> March 2013

Re: House at Sexton Park

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George,

Thank you for sending me the information regarding the extension to Mr Ellis's house at Sexton Park.

Although you say the client may be put off, I feel it is imperative we use a form of appointment for this project, and although a letter could form the terms of a contract I feel would be best practice to use a standard form of agreement.

A good working relationship between architect and client is crucial to the success of any project. Following discussions and agreement on the scope and cost of architectural services before the project begins; we need to ensure that the agreement is in writing. This will avoid misunderstandings and disputes, define fees and provisions for payment, assert and retain copyright, establish a fair and reasonable allocation of risks, comply with RIBA and ARB code of conduct requirements (ARB Code of Conduct Standard 4 Competent management of your business, RIBA Code of Professional Conduct 2.3 Competence), provide clarity, comfort and protection to both parties.

For larger professional projects I would consider the Standard Agreement (S-10-A), however this small project does not require detailed contract terms. The contract provides for an adjudicator under the Housing, Construction and Regeneration Act 1996: Adjudication is a cheap and easy way for a company to resolve a dispute, and as the client in this case is a 'consumer' to whom the Unfair Terms in the Consumer Contracts Regulations 1999 apply. Dispute resolution will need to be negotiated with Mr Ellis for this appointment.

The RIBA publishes a suite of appointment contracts, of which two are suitable for domestic clients;

- Domestic Project Agreement 2010 (D-10-A) is suitable for use where the client requires work to his or her home. The agreement components include a fees and expenses schedule and a model letter.
- Concise Agreement 2010 (C-10-A), which is suitable for a professional commission or construction project with simple contract terms where the client is acting for business or commercial purposes.

In this case we should use the Domestic Project Agreement 2010 as there are no commercial intentions.

I have based my letter to Mr Ellis on the model letter published alongside this agreement. There are a number of points in the letter you provided which are of concern and I would suggest amending:

- Scope of the work - A 'full service' is mentioned however a domestic client may not be aware of what this means. The RIBA publishes the booklet A Client's Guide to Engaging an Architect which could be attached to our fee letter, and a copy of the RIBA Outline Plan of Work could be useful for Mr Ellis.

- You have described the project as a 'New House', however the client only seems to require an extension. We must be clear on the appointment what the brief requires otherwise we may be liable further a larger scope of services than budgeted for.
- The letter you attached is addressed to the clients' first names. A business letter that is formal or legal in nature should always be addressed by title and last name, regardless of familiarity with the reader.
- The fee or method of calculating it - Although you have stated that a 12% fee applies, no calculation is included, or figure specified. The contract value is not indicated.
- The appointment need to specify who will be responsible for what. An Architect must be responsible for the project throughout all stages (ARB Code of Conduct Standard 2.1); therefore you as Architectural Technologist cannot hold this duty. I recommend Belinda leads the project and provides supervision throughout. The agreement must include that the architect in charge is registered with the Architects Registration Board and that they are subject to its Code of Conduct.
- Any constraints or limitations on the responsibilities of the parties need to be decided.
- Provisions for suspension or termination of the agreement are not noted.
- A statement that you have adequate and appropriate insurance cover as specified by the ARB to be included.
- Our complaints-handling procedure should be outlined (RIBA Code of Professional Conduct Standard 10), including details of any special arrangements for resolving disputes (e.g. arbitration), as discussed above.

The construction contract for the project would most likely be a JCT Minor Works (MW) 2011 agreement.

We will also need to review the planning requirements for the project, as this could affect our service. If the proposal constitute permitted development a planning application will not be required, however easements (right to light, right of access etc.) will need to be considered.

As a non-notifiable project the HSE will not require notification (Form F10) under the Construction (Design and Management) Regulations 2007 (CDM).

I have drafted a letter for Mr Ellis, a copy of which I will leave on Belinda's desk for comments and signature. The letter includes a copy of the documents for consideration, and we should arrange a meeting where we can meet to sign and initial both copies of the documents if he is happy with the arrangement.

I hope Mr Ellis finds this acceptable and we win the work! It would be great experience for me.

Kind regards

Jenny Carlin

Architectural Assistant

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Web: [www.ndgarchitects.co.uk](http://www.ndgarchitects.co.uk)

#### References:

RIBA (2013). Guidance and Publications: Work with an architect. [cited: 6<sup>th</sup> March 2013].

<http://www.architecture.com/UseAnArchitect/GuidanceAndPublications/WorkWithAnArchitect.aspx>

Willis, David Chappell and Andrew. 2010. *The Architect in Practice*. Oxford : Wiley-Blackwell, 2010. p118

Brindley, R. (2012, March). Appointment Contracts RIBA Agreements 2010: An Overview of the RIBA Appointment Agreements. *RIBA North West Lecture Notes 2012*.

(Fee letter to Client)



Mr F. Ellis  
98 Long Mount Road  
Sexton Park  
WZ 2DG

6<sup>th</sup> March 2013

Dear Mr Ellis,

**Re: Extension at Sexton Park**

Thank you for inviting my practice to act as your Architect for this project. I am aware that you are reluctant to participate in a formal appointment, however we feel that good working relationship between architect and client is crucial to the success of any project. Following discussions and agreement on the scope and cost of architectural services before the project begins we need to ensure that the agreement is in writing. This will avoid misunderstandings and disputes, define fees and provisions for payment, assert and retain copyright, establishes a fair and reasonable allocation of risks, and complies with RIBA and ARB code of conduct requirements to which we are upheld, provide clarity, comfort and protection to both parties.

Firstly, I would like to arrange a meeting with you to discuss the contents of this letter and if appropriate we can sign and initial both copies of the documents if you are happy with the arrangement.

Following the meeting with yourself and a visit to the site I will set out your requirements and information about the Site – 'The Brief'.

I gather your target budget is £175,000 from which must be deducted our fees and those of any other consultants, together with any VAT. We will discuss when you require building works to commence.

The Agreement with you will comprise of this Letter of Appointment together with RIBA Conditions of Appointment for an Architect for a Domestic Project 2010 (attached) incorporating the proposed amendments to the Conditions in Appendix and other documents referred to in this letter.

In our meeting I will also draw your attention to and explain the purpose of each of the conditions, in particular to our decisions on:

- Condition 5 relating to fees and expenses;
- Condition 7 relating to liability;
- Condition 9.1 relating to the resolution of any dispute.

You can note the provisions of clause 10.

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### Services

The Services will be provided in accordance with the Small Project Services Schedule. If it becomes necessary to vary the services, we can discuss how this might be arranged.

If it should prove necessary to seek advice from any other consultants or specialists, I will advise you at the appropriate time about such appointments and the fees entailed.

### Fees

Our fee calculation is set out below:

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|                                                                                |               |                 |
|--------------------------------------------------------------------------------|---------------|-----------------|
| <b>Total Project Budget</b>                                                    |               | <b>£175,000</b> |
| VAT @ 20%                                                                      | -             | £35,000         |
|                                                                                | %             |                 |
| <b>Sub Total</b>                                                               | <b>121.50</b> | <b>£140,000</b> |
| Contingency/risk                                                               | <b>10.00</b>  | £11,523         |
| Risk percentage should be accounted for during the initial stages of a project |               |                 |
| <b>Consultants fees</b>                                                        |               |                 |
| Engineer                                                                       | 2.00          | £2,305          |
| <b>Total Other fees</b>                                                        | <b>2.00</b>   | £2,305          |
| <b>Architect</b>                                                               | <b>9.50</b>   | <b>£10,947</b>  |
| <b>Total Construction Cost</b>                                                 | <b>100.00</b> | <b>£115,226</b> |

Statutory fees should also be removed from the construction budget (as the requirements of the building have yet to be established these cannot be estimated).

---

In summary, our fee is

**£10,947 + VAT**

**(ten thousand, nine hundred and forty seven pounds plus VAT)**

Before implementing any changes required to the Services or an approved design, the basis for any consequential change to the fees or expenses will be agreed with you.

Accounts will be submitted monthly for fees and other amounts due. The final date for payment of our account is 14 days after the date of issue. Please note that any sums remaining unpaid after 14 days will bear interest plus reasonable debt recovery costs as condition 5.12.

In addition to fees, the following expenses will be charged at net cost by the addition of to the total fee of 6%. Any disbursements made on your behalf, such as payments to the local authority for planning submissions or Building Regulations approval, will be payable directly.

The practice is registered for VAT, which is chargeable on all fees and expenses.

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**Liability**

We discussed the potential risks associated with your project and agreed that liability to you for loss or damage, subject to condition 7.2.1, will be limited to £1million for each and every claim.

Until the expiry of the liability period, professional indemnity insurance cover will be maintained for that amount to be available for your Project. Documentary evidence of the insurance can be provided, if required.

**Disputes**

My practice aims to provide a professional standard of service, but if at any time you are not satisfied, please bring the issue to my attention as soon as possible and we can discuss how to resolve the issue.

However, either of us can refer the matter to adjudication or the courts in accordance with condition 9.

**Completing the Agreement**

I confirm that performance of the Services will commence following a meeting to discuss this agreement. I also confirm that my practice will be represented by myself, Belinda Carter, ARB number 077044B.

If these arrangements are acceptable to you, please call at your convenience to arrange a meeting where we can sign the Agreement.

I am enclosing, for your information, a copy of 'A client's guide to engaging an architect' which includes a brief outline of some relevant legislation, that I hope you will find helpful.

Yours sincerely,

Belinda Carter

**Director**

*For and on behalf of ndg architects*

**Attached:**

A client's guide to engaging an architect

RIBA Conditions of Appointment for an Architect for a Domestic Project 2010

**References:**

*RIBA Conditions of Appointment for an Architect for a Domestic Project 2010 Part 2 Model Letter*

Willis, David Chappell and Andrew. 2010. *The Architect In Practice*. Oxford : Wiley-Blackwell, 2010.

Brindley, R. (2012, March). Appointment Contracts RIBA Agreements 2010: An Overview of the RIBA Appointment Agreements. *RIBA North West Lecture Notes 2012*.

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(Memo to Belinda)

## NDG Architects Ltd

Interoffice memo (email)

---

To: Belinda Carter

Cc: Sue Allen

From: Jenny Carlin

Date: 6<sup>th</sup> March 2013

Re: Visitors Centre at Tally Ho

---

Belinda,

Following your email regarding a biodigester and visitors centre as part of the estate at Tally Ho, I have put together a list of the points we need to consider.

### Listing Building Consent

In the first instance we need further details if the manor house has listed status and if it is Grade II, II\* or I. This will have implications for the reaction of the local authority and statutory bodies to any proposals. It appears that Zone 1 marked on the plan and allocated for the plant and visitor's centre has an existing building located within it; I would assume that as all structures within the curtilage of the Listed Building are also affected by the Listing, that alterations to the barn would require Listed Building Consent under the Planning (Listed Buildings and Conservation Areas) Act 1990 from the Local Authority. This also relates to objects or structures which, although not fixed to the building, form part of the land and have done so since before 1 July 1948. However our first step would be to check the Listing records for Tally Ho's manor house and confirm this.

Listing does not freeze a building in time, it simply means that listed building consent must be applied for in order to make any changes to that building which might affect its special interest. Listed buildings can be altered, extended and sometimes even demolished within government planning guidance. The local authority uses listed building consent to make decisions that balance the site's historic significance against other issues such as its function, condition or viability.

In addition to Listed Building Consent, Planning Approval will be required. Currently no fee is payable for Listed Building Consent applications, however a Planning application will incur a fee.

It would be appropriate to take into account the advice of the local authority's conservation and access officers, and English Heritage, as well as the views of local access groups. Pre-application consultation would greatly assist with making Planning and Listed Building Consent Applications.

A Design and Access Statement submitted with a Planning Application should include the outcome of these consultations with other parties. It should also identify the constraints imposed by the existing structure and its immediate environment.

## NPPF

In terms of the National Planning Policy Framework (NPPF), I have outline the points of the framework which apply to this project below. A check with local planning policy (Local Development Framework and Plans) would also be needed.

### *3. Supporting a prosperous rural economy*

Sustainable growth and expansion is supported in rural areas, through conservation and well-designed new buildings. The Framework also supports 'rural tourism' that benefit rural areas, communities and visitors.

### *4. Promoting sustainable transport*

Lord Avafewbob could consider a sustainable transport solution in addition to parking provision. This is supported under 4.30, and would require a Transport Statement or Assessment. The current proposal of allocating a large of area of parking may not be accepted by the LA.

### *7. Requiring good design*

The design of the visitor's centre and plant could be supported by the NPPF if it is of good quality. Quality measures can be used to assess how the project, for example a CABE Design Review.

### *9. Protecting Green Belt land*

The proposal may not be supported, however once Green Belts have been defined, local planning authorities should plan positively to enhance the beneficial use of the Green Belt, such as looking for opportunities to provide access; to provide opportunities for outdoor sport and recreation; to retain and enhance landscapes, visual amenity and biodiversity; or to improve damaged and derelict land. If we can prove that the proposal achieves this an application is more likely to be accepted.

### *10. Meeting the challenge of climate change, flooding and coastal change*

This is central to the economic, social and environmental dimensions of sustainable development. The biodigester plant's strategy to power 1,000 homes would be in favour of this point, 'minimising vulnerability and providing resilience to the impacts of climate change, and supporting the delivery of renewable and low carbon energy and associated infrastructure'.

### *12. Conserving and enhancing the historic environment*

The benefits of the proposal will be weighed up against the impact it has on the historic environment. Protected wildlife will need to be taken into account.

## Other Statutory issues

If the site falls within a Conservation Area or contains any Tree Protection Orders (TPO's) this will also affect the development potential. If all or part of the site is located in a conservation area then by default all the trees within this area are protected and consideration will be required for their removal.

We also need to establish if the site is located within an Area of Outstanding Natural Beauty, or a Green Belt as there will be restrictions on the development opportunities. Form the plan you enclosed this seems a possibility.



The plan also suggests that it would be wise to arrange an Environmental Impact Assessment as soon as possible as these can take some time.

If he is going to make a discharge to surface water (for example a river, stream, estuary or the sea), or to groundwater (including via an infiltration system) then he may need to apply for an environmental permit to make that discharge from the Environment Agency. If we propose to discharge to ground by spreading on land we should refer to the Environment Agency's groundwater specific guidance.

### Environmental Accreditations

Lord Avafewbob may want to consider Environmental Assessment for the project: BREEAM 'Excellent' or 'Outstanding' would be suitable, however would require uplift on capital cost (1.6% for 'Excellent', 5% for 'Outstanding' based on a mixed use building [1]). This may form part of Planning Approval Conditions so it would be wise to consider it early. The project would fall under 'BREEAM New Construction 2011 (other buildings)' and assessments are generally undertaken in two stages: firstly the design stage, which leads to an Interim BREEAM certified rating; and secondly the post construction stage, which leads to a Final BREEAM certified rating.

### Local Community

The proximity to local houses could be cause for concern, and a pre-application with the local community would help mitigate later objections. By including them in the plans and helping them contribute to the proposal as a community would drive a sense of cooperation and neighbourhood spirit. The fact that they may receive subsidised electricity though the scheme should also give them interest in the project.

### Site Suitability

It may be advisable to review other potential sites within the grounds, possibly incorporating any new buildings within the existing enclave of farm buildings to the east of the estate. Also recycling a building asset might be better than ripping it down and starting again or building anew, however this could conflict with any listed building status so would need to be considered carefully with the consultation of the LA.

I assume that the areas marked on the plan are owned by Lord Avafewbob. If we carry out an additional feasibility zoning we will need to ascertain the scope of his ownership.

In summary I would argue that there should be a less restrictive reception to any proposals by Lord Avafewbob as there are a number of benefits which weigh in favour of the scheme. It secures the optimum viable use of the land in support of its long term conservation and would make a positive contribution to economic vitality and sustainable communities. Design and strategy would need to be carefully considered, and I would recommend pre-application advice followed by outline planning permission before proceeding with a full plans submission.

In my letter I have outlined the planning process and associated times and procedures and hope to have clearly stated that we cannot guarantee planning permission under any circumstances. I have also highlighted the project team as you requested. I know that you will be dealing with fees, but we need to

make the Lord aware of the fees of all these consultants as well as our own and the additional payments necessary in lieu of planning consents.

I have copied Sue Allen into this memo as NDG's environmental expert, as she may also have some comments to add on the scheme. The letter is on your desk ready for posting, subject to your comments, and I have filed a copy appropriately within the electronic job file.

Kind regards

Jenny Carlin

Architectural Assistant

**NDG Architects Ltd**

Wharf Mill

Paccadilly

Manchester

MAD PPA

Telephone: 0191 123 4567

Fax: 0191 234 5678

Web: [www.ndgarchitects.co.uk](http://www.ndgarchitects.co.uk)

*References:*

[1] Buxton, Pamela (2013) BDonline, 11th February 2013, *How to win the top green ratings* [accessed 6th March 2013] <http://www.bdonline.co.uk/technical/how-to-win-the-top-green-ratings/5050060.article>

*General:*

Environment Agency (2013). Environmental permitting for discharges to surface water and groundwater [accessed 6<sup>th</sup> March 2013] <http://www.environment-agency.gov.uk/business/topics/water/32038.aspx>

English Heritage (2013) Homepage. [accessed 6<sup>th</sup> March 2013] <http://www.english-heritage.org.uk>

English Heritage (2013) The National Heritage List for England. [accessed 6<sup>th</sup> March 2013] <http://list.english-heritage.org.uk/>

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Willis, David Chappell and Andrew. 2010. *The Architect in Practice*. Oxford : Wiley-Blackwell, 2010.

(Letter to Client)



Lord Avafewbob  
[Insert Client's Address Here]

6<sup>th</sup> March 2013

Dear Lord Avafewbob,

**Re: Visitor's Centre at Tally Ho**

Following your meeting with Belinda I have prepared some information regarding the processes involved in a project such as this.

Firstly we will review if the Manor House has Listed Status as we will need to establish the likely reaction of English Heritage to any scheme. It is also possible the site could lie in a Green Belt or conservation area and it would be useful to establish this early on as this will have an impact on any development opportunities. Any legal rights associated with this site should also be reached as soon as possible.

Following initial investigation a site survey by a reputable surveying firm will need to be carried out to give us detailed information regarding the existing buildings, trees and topographical nature of the site that we will need to consider.

We would recommend that we make early contact with the local authority for pre-application advice, and encourage the local authority to engage with the scheme. This may promote initial support for the scheme at an early stage.

You should also consider an Environmental Accreditation for the scheme. I have attached information about BREEAM (we would recommend an 'Excellent' or 'Outstanding' score for this proposal, however this would require uplift on capital cost (1.6% for 'Excellent', 5% for 'Outstanding'). Note that this may be a condition of planning consent depending upon the views of the local authority; therefore it is appropriate to consider it early.

On carrying out feasibility studies we would consider other sites on your land, as incorporation into the existing farm may be more viable. Recycling a building asset might be better than ripping it down and starting again or building anew, however this could conflict with any listed building status so would need to be considered carefully. Also a sustainable transport initiative could be supported more by the local authority – it is my feeling that such a large area of surface parking would not be acceptable.

We should then undertake an outline planning application to test the viability of any proposal. A planning application could then be made for the proposal – on a project of this size it would take approximately 6 weeks to complete and submit. The application process is then a minimum of 8 weeks, during which time the

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planning office will assess the proposal, make a site visit, consult statutory bodies (e.g. English Heritage) and contact us regarding and potential changes that could encourage an approval. For this we would prepare suitable drawings including a site plan, existing and proposed drawings and a design and access statement for the project. If the biodigester is to discharge to surface or ground water you will also require a permit from the Environment Agency.

The planning process is subjective, and there is no guarantee that application will be granted. The planning application could go on for a maximum of 13 weeks with consultation processes and even if the council has given pre-application advice (although this would be looked on favourably) it does not guarantee approval. It may be necessary to make multiple applications and there is the option to appeal a refused application, but this is an even longer procedure.

In addition to the Architect's services you may need to consider appointment of the following consultants:

*Environmental Assessor* – To understand the condition of the Site

*BREEAM Assessor* – If you decided to go ahead with accreditation.

*Surveyor* – To complete the general site and building survey

*Structural Engineer* – Advise on both new buildings and existing structures

*Services Engineer* – We will require an engineer with experience in biodigester technology, otherwise you would need to appoint a general and a specialist consultant to design the scheme.

These consultants all come with fees and additional payments will be necessary in lieu of planning consents etc. I believe Belinda will forward a fee schedule separately.

From looking at the initial information there could be a possibility of developing the scheme, however the quality of design and integration into the community will be key to its success.

I hope to have given you some insight into the process you will need to follow if you proceed with this venture, and if you have any questions please do not hesitate to ask.

Yours sincerely,

Jenny Carlin

Architectural Assistant

*For and on behalf of ndg architects*

Attached.

Print copy of BRE (2013). What is BREEAM? [accessed 6<sup>th</sup> March 2013].  
<http://www.breeam.org/about.jsp?id=66>

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(Memo to Belinda Carter)

# NDG Architects Ltd

Interoffice memo (email)

---

To: Belinda Carter

Cc:

From: Jenny Carlin

Date: 6<sup>th</sup> March 2013

Re: New Housing (15no.) Project on former Bus Depot Site

---

Belinda,

Further to your email regarding the fee proposal for 15 new houses on the former bus depot site, I have calculated the fee for the relevant project stages, charge out rate, staff resourcing analysis and predicted programme for the project.

Initially the main things to consider in regard to the fee are as follows:

## Repetition

Whilst the proposal is 15 houses, these are likely to be repetitive in nature and will almost certainly use identical construction techniques throughout (potentially modern methods of construction). I would envisage that there will be a fair amount of repetitive work where only minor drawing changes are required between units. Three house types would be a suitable number to allow enough variation on the site, whilst reducing duplication.

## Site Queries

Despite the fact that Iffy Developments do not want us to be involved on site, in order to answer any site queries we need to undertake site visits to view progress. I suggest one per fortnight, which should be also charged as a time charge in addition to responding to queries. Please see my attached Hourly / Day Rate Calculation, but in summary we should charge as follows:

|                                 |                         |                     |
|---------------------------------|-------------------------|---------------------|
| <i>Belinda C. Carter</i>        | Director                | £111 per hour + VAT |
| <i>Dareem Patel</i>             | Architect               | £63 per hour + VAT  |
| <i>Jenny Carlin (Candidate)</i> | Architectural Assistant | £50 per hour + VAT  |

### Current Work Load

I have assumed due to our current work load that we would be able to start our service on 1<sup>st</sup> April 2013, following approval of fees and appointment agreement.

I have assumed the total budget of £1.5million is exclusive of any VAT payable, but inclusive of consultants' fees and other fees relating to the project. I have assumed the construction cost therefore to be £945,626, or £63,042 average for each unit house.

Allowing for the other consultants fees at 6% (to include engineer, QS, Services Engineer) based on this construction cost our fee calculates at:

|                                                                   |       |                     |
|-------------------------------------------------------------------|-------|---------------------|
| Architect full service A-L (as a percentage of construction cost) | 5.90% | £69,740 +VAT        |
| Architect Stages E and F only                                     | 35%   | £24,409 +VAT        |
| Architect Stages E and F only repetition discount                 | -25%  | -£2,093 +VAT        |
| Architect fee for Stages E and F with repetition discount         |       | £22,315 +VAT        |
| Architect Stage J fee                                             | 1%    | £697 +VAT           |
| <b>Total Architects fee for Stages E, F and J</b>                 |       | <b>£23,013 +VAT</b> |

Please refer to my Fee Calculation Sheet attached for the full breakdown.

### VAT

As the development is 'new build' houses the construction works will not be subject to VAT, but this does not relate to consultants fees which will be subject to VAT at 20%.

As you can see on my resourcing spread sheet the total costs for predicted works at Stages E and F is £22,675. This includes a contingency of 10% and risk of 5%, which I feel is reasonable for unforeseen circumstances e.g. contaminated land on the bus station. I have set the fee at 5.9% and I think this is competitive.

### Resourcing

In my allocation for staff resources, I have limited your time on the project as an overseeing role, and given more hours to Dareem as project architect. I am a cheaper resource again so it makes sense that most of my time is spent on the project, and Dareem can advise where needed.

### Service during Mobilisation

Please referred to my Fee Calculation sheet, however in summary our fee for Stage J is £697. This would allow for 2 hours of your time and 7.5 (1day) of Dareem's time. Any further assistance I would recommend is charged out at our hourly rate above.

Before final negotiations with Iffy Contractors Ltd we should check their financial status to ensure they will be able to fulfil payments for our services. As a separate enterprise to Iffy Developments they operate as an

individual company, however may be owned by a parent company and we may want a warranty. Information is available from Companies House for a fee.

I trust this is adequate information for now, if you have any questions regarding calculations please let me know.

Kind regards

Jenny Carlin

Architectural Assistant

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*References:*

Farrall, P. (2012, March). Fee Proposals and Management. *RIBA North West Lecture Notes 2012*.

Philips, R. (2009). *Good practise guide: Fee Management*. London: RIBA Publishing, 2009.

Willis, David Chappell and Andrew. (2010). *The Architect In Practice*. Oxford : Wiley-Blackwell, 2010.

|                              |                                                      |
|------------------------------|------------------------------------------------------|
| <b>NDG Architects Ltd.</b>   |                                                      |
| <b>Project Name</b>          | New Housing (15no.) Project on former Bus Depot Site |
| <b>Date</b>                  | 6th March 2013                                       |
| <b>Revision</b>              | -                                                    |
| <b>Fee Calculation Sheet</b> |                                                      |

Our fee for the construction breaks down as follows:

**Total Project Budget** £1,500,000

VAT @ 0% - £0

**Sub Total** 126.90 £1,500,000

Contingency 10.00 £118,203  
risk 5.00 £59,102

Risk percentage should be accounted for during the initial stages of a project

**Consultants fees**

Engineer 2.00 £23,641  
QS 2.00 £23,641  
Services Engineer 1.00 £11,820  
Planning Supervisor 1.00 £11,820  
**Total Other fees** 6.00 £70,922  
**Architect** 5.90 £69,740

**Total Construction Cost** 100.00 £1,182,033

Statutory fees should also be removed from the construction budget (as the requirements of the building have yet to be established these cannot be estimated).

|                            | Percentage charge |                                                                        |
|----------------------------|-------------------|------------------------------------------------------------------------|
| Stage E                    | 15%               | £10,460.99                                                             |
| Stage F                    | 20%               | £13,947.99                                                             |
| <b>Fee for Stage E + F</b> |                   | <span style="border: 1px solid black; padding: 2px;">£24,408.98</span> |

**Repetition discount**

*Philips, R. (2009). Good practise guide: Fee Management. London: RIBA Publishing, 2009. p46*

£ Credit for repeated design of houses (excluding substructures and any shared construction or installations)

=

(No. of units less one) x unit cost

(Cost of construction)

x (% of fee in £ for Work Stages E and F)

Number of units 15  
Unit cost £78,802  
% fee for stages E and F 35%  
% rebate 75%  
**Total discount to full service A-L** £5,980.20  
Discount to Stages E and F only 35% £2,093.07  
**Total Fee for Stage E + F** £22,315.91

Stage J mobilisation 1% £697.40



|                                      |                                                      |
|--------------------------------------|------------------------------------------------------|
| NDG Architects Ltd.                  |                                                      |
| <b>Project Name</b>                  | New Housing (15no.) Project on former Bus Depot Site |
| <b>Date</b>                          | 6th March 2013                                       |
| <b>Revision</b>                      | -                                                    |
| <b>Hourly / Day Rate Calculation</b> |                                                      |

**Assumptions:**

|                   |                   |
|-------------------|-------------------|
| Yearly Work Hours | 1700 See note (1) |
| Profit            | 20%               |
| Overheads         | 100.00%           |
| NI                | 12.00%            |
| Partners NI (8%)  | 8% See note (6)   |

| Staff Member                   | Position                         | Annual Expenditure |                |                 | Annual Profit   |                 | Charge Out Rate     |             |                |
|--------------------------------|----------------------------------|--------------------|----------------|-----------------|-----------------|-----------------|---------------------|-------------|----------------|
|                                |                                  | Basic Salary       | Insurance      | Overheads       | Total Cost      | Profit          | Productivity factor | Staff Hour  | Staff Day Rate |
| James T. Noble                 | Director                         | £52,000            | £4,160         | £30,429         | £86,589         | £17,318         | 55%                 | £111        | £833           |
| Belinda C. Carter              | Director                         | £52,000            | £4,160         | £30,429         | £86,589         | £17,318         | 55%                 | £111        | £833           |
| Michael Hart                   | Associate Director               | £36,000            | £4,320         | £30,429         | £70,749         | £14,150         | 60%                 | £83         | £624           |
| Sue Ailen                      | Associate Director               | £36,000            | £4,320         | £30,429         | £70,749         | £14,150         | 60%                 | £83         | £624           |
| Dareem Patel                   | Architect                        | £33,000            | £3,960         | £30,429         | £67,389         | £13,478         | 75%                 | £63         | £476           |
| Sven Berg                      | Architect                        | £33,000            | £3,960         | £30,429         | £67,389         | £13,478         | 75%                 | £63         | £476           |
| Tomas Hjelt                    | Architect                        | £31,000            | £3,720         | £30,429         | £65,149         | £13,030         | 75%                 | £61         | £460           |
| Renata Wang                    | Architect                        | £31,000            | £3,720         | £30,429         | £65,149         | £13,030         | 75%                 | £61         | £460           |
| George Gee                     | Architectural Technologist       | £27,000            | £3,240         | £30,429         | £60,669         | £12,134         | 80%                 | £54         | £401           |
| Jenny Carlin (Candidate)       | Architectural Assistant          | £23,000            | £2,760         | £30,429         | £56,189         | £11,238         | 80%                 | £50         | £372           |
| Olga Poulice                   | Architectural Assistant          | £23,000            | £2,760         | £30,429         | £56,189         | £11,238         | 80%                 | £50         | £372           |
| Mark Jones                     | Architectural Technician         | £21,000            | £2,520         | £30,429         | £53,949         | £10,790         | 80%                 | £48         | £357           |
| Liv Grosfjelt                  | Year out student                 | £14,000            | £1,680         | £30,429         | £46,109         | £9,222          | 85%                 | £38         | £287           |
| Sara Smitt                     | Year out student                 | £14,000            | £1,680         | £30,429         | £46,109         | £9,222          | 85%                 | £38         | £287           |
| Sarah Jane Key                 | Administrative assistant         |                    |                |                 |                 |                 |                     |             |                |
| Sophie Bright                  | Receptionist/ Clerical assistant |                    |                |                 |                 |                 |                     |             |                |
| Jane Dudley                    | Clerical assistant               |                    |                |                 |                 |                 |                     |             |                |
| Anne Holding                   | Accounts assistant               |                    |                |                 |                 |                 |                     |             |                |
| <b>Total</b>                   |                                  | <b>£426,000</b>    | <b>£46,960</b> | <b>£426,006</b> | <b>£898,966</b> | <b>£179,793</b> |                     | <b>£915</b> | <b>£6,863</b>  |
| <b>Average Technical Staff</b> |                                  | <b>£30,429</b>     | <b>£3,354</b>  | <b>£30,429</b>  | <b>£64,212</b>  | <b>£12,842</b>  |                     | <b>£65</b>  | <b>£490</b>    |

**Notes:**

- (1) Number of fee earning hours based on a 5-day week, 7.5 hour working day, 20 days paid holiday, 5 days sick leave on average, and 8 days public holiday (1,700 hours per year approx).
- (2) Templates and notes created from RIBA NW Lecture notes and study group.
- (3) All fees stated exclude VAT
- (4) Overheads are average technical staff salary
- (5) Overheads and profit as stated in Question 4 March 2013
- (6) As per RIBA NW 'Fee Proposals and Management' lecture notes

|                                               |                                  |                                                      |   |   |   |        |   |   |   |        |   |   |  |
|-----------------------------------------------|----------------------------------|------------------------------------------------------|---|---|---|--------|---|---|---|--------|---|---|--|
| NDG Architects Ltd.                           |                                  |                                                      |   |   |   |        |   |   |   |        |   |   |  |
| Project Name                                  |                                  | New Housing (15no.) Project on former Bus Depot Site |   |   |   |        |   |   |   |        |   |   |  |
| Date                                          |                                  | 6th March 2013                                       |   |   |   |        |   |   |   |        |   |   |  |
| Revision                                      |                                  | -                                                    |   |   |   |        |   |   |   |        |   |   |  |
| Detailed Programme with Resourcing Allocation |                                  |                                                      |   |   |   |        |   |   |   |        |   |   |  |
|                                               |                                  | Apr-13                                               |   |   |   | May-13 |   |   |   | Jun-13 |   |   |  |
| RIBA Job Stage                                | Task                             | 1                                                    | 2 | 3 | 4 | 1      | 2 | 3 | 4 | 1      | 2 | 3 |  |
| E                                             | Technical Design                 |                                                      |   |   |   |        |   |   |   |        |   |   |  |
|                                               | Develop final proposals          |                                                      |   |   |   |        |   |   |   |        |   |   |  |
|                                               | Scheme Design Report, sign-off   |                                                      |   |   |   |        |   |   |   |        |   |   |  |
| F                                             | Production Information           |                                                      |   |   |   |        |   |   |   |        |   |   |  |
|                                               | Prepare schedule of works        |                                                      |   |   |   |        |   |   |   |        |   |   |  |
|                                               | Prepare production information   |                                                      |   |   |   |        |   |   |   |        |   |   |  |
|                                               | Detailed Design Report, sign-off |                                                      |   |   |   |        |   |   |   |        |   |   |  |
|                                               | Building Regulations submission  |                                                      |   |   |   |        |   |   |   |        |   |   |  |
|                                               | Building Regulations approval    |                                                      |   |   |   |        |   |   |   |        |   |   |  |

The programme allows for no slip  
Building Regulations Application approval within 5 wks

|                                 |                                  |  |     |  |  |    |  |    |  |  |  |    |  |
|---------------------------------|----------------------------------|--|-----|--|--|----|--|----|--|--|--|----|--|
| <b>Resources</b>                |                                  |  |     |  |  |    |  |    |  |  |  |    |  |
| James T. Noble                  | Director                         |  |     |  |  |    |  |    |  |  |  |    |  |
| <b>Belinda C. Carter</b>        | <b>Director</b>                  |  | 2   |  |  | 1  |  | 1  |  |  |  | 2  |  |
| Michael Hart                    | Associate Director               |  |     |  |  |    |  |    |  |  |  |    |  |
| Sue Allen                       | Associate Director               |  |     |  |  |    |  |    |  |  |  |    |  |
| <b>Dareem Patel</b>             | <b>Architect</b>                 |  | 5   |  |  | 2  |  | 2  |  |  |  | 5  |  |
| Sven Berg                       | Architect                        |  |     |  |  |    |  |    |  |  |  |    |  |
| Tomas Hjeltnes                  | Architect                        |  |     |  |  |    |  |    |  |  |  |    |  |
| Renata Wang                     | Architect                        |  |     |  |  |    |  |    |  |  |  |    |  |
| George Gee                      | Architectural Technologist       |  |     |  |  |    |  |    |  |  |  |    |  |
| <b>Jenny Carlin (Candidate)</b> | <b>Architectural Assistant</b>   |  | 150 |  |  | 75 |  | 75 |  |  |  | 60 |  |
| Olga Poulicek                   | Architectural Assistant          |  |     |  |  |    |  |    |  |  |  |    |  |
| Mark Jones                      | Architectural Technician         |  |     |  |  |    |  |    |  |  |  |    |  |
| Liv Grosfjelt                   | Year out student                 |  |     |  |  |    |  |    |  |  |  |    |  |
| Sara Smitt                      | Year out student                 |  |     |  |  |    |  |    |  |  |  |    |  |
| Sarah Jane Key                  | Administrative assistant         |  |     |  |  |    |  |    |  |  |  |    |  |
| Sophie Bright                   | Receptionist/ Clerical assistant |  |     |  |  |    |  |    |  |  |  |    |  |
| Jane Dudley                     | Clerical assistant               |  |     |  |  |    |  |    |  |  |  |    |  |
| Anne Holding                    | Accounts assistant               |  |     |  |  |    |  |    |  |  |  |    |  |





(Memo to Belinda Carter)

## NDG Architects Ltd

Interoffice memo (email)

---

To: Belinda Carter

Cc:

From: Jenny Carlin

Date: 6<sup>th</sup> March 2013

Re: Madchester Academy

---

Belinda,

A Single Multi-Disciplinary Provider Framework is a 'strategic partnering' approach, as opposed to project partnering where the parties enter into a legally binding contract which takes on elements of a building contract also (similar to a design and building contract). I have outlined the advantages and disadvantages and they are attached to this memo, I trust they are of aid to you and the client. As you can see there are many more advantages to this type of framework, and it is my opinion that we should recommend this option to Mr Barber.

Considering that we have an established relationship then it would seem a good step for both our parties to continue with future projects. I assume that as they are tendering the framework through OJEU that the academies consortium is considered a Public Body. As they are all academies they are funded at least in part by the government and as such any work is considered public and deemed publishable under the OJEU tendering scheme which is a long drawn out process.

Firstly, we should consider if we are able to provide the complete services listed as a single practice. I also assume that the Outline Scope of Services you attached would be included in an OJEU Contract Notice. It suggests that the Consortium are looking for a number of separate consultants to enter into a agreement; We would not be able to provide the full list of services alone (particularly a) advice on property portfolio, b) and c) procure and manage contractors) as we do not have the resources or expertise, therefore if a single multi-disciplined provider such as Doitall Design plc. was required, we may consider entering into a joint venture or special purposed vehicle with other consultants in order to tender for this contract. I do not this would be in the interests of the Consortium however as a number of parties would be more competitive and achieve the intentions of the set up better. It would also have some significant legal implications for us (business type, LLP, LLC, partnership, how PI insurance would be provided, profit shared etc.) which could be onerous. Therefore we would be able to tender for architectural services, and potentially CDM Co-ordinator.

We should verify how we would need to respond to the notice, as either an Expression of Interest Letter or a Pre-Qualification Questionnaire document which should include: our,

- Practice details
- Financial details - DUNS and Bradstreet DUNS Number
- Quality Assurance - ISO 9001

- Environmental Quality Assurance - ISO 14001
- Policies (equal opportunity, health & safety, conflict of interest, security, business continuity etc)
- Insurance details

We may then be called for interview where we could present any initial work at our own cost. This is a risk for the practice as all work would be under taken speculatively and we may not receive a fee; bids such as this are usually very competitive and from my experience are hard to win. As we are stretched at the moment this may prove unwise, however a successful tender may acquire a good volume of work and more importantly future fees for the practice. In order to be competitive in our fee bid, a framework fee at a discount can be negotiated based on repetitive work - this would reduce our profit, however could result in us winning more work.

How the consortium intends to call-off work will also affect our cash flow; mini competitions are very labour intensive, and although they achieve quality for the client, it is further work we potentially undertake for no fee. If this is the method they intend to use perhaps a small fee could be negotiated for this.

Our PI cover will also need review as the contract notice will state a requirement: We should check that our insurers will be able to cover this.

The fact that relationships with the previous provider have deteriorated rings alarm bells, and this needs investigating. We should be cautious with a client who could potentially be liable to dispute, and although we have a long standing relationship with Mr Barber at Madchester Academy, we have no knowledge of the other members of the Consortium.

The partnering contract that is likely to be tendered is the JCT Framework Agreement which is suitable for large volumes of varied work over up to four years or GC/Works/5, a government framework agreement, popular for procuring public projects and also suitable for long time frames.

I trust that this information is helpful to you. If you do have any questions please let me know. Although circumstances are improving, to secure a four year framework would create some stability in the practice.

I will keep an eye out for the OJEU notice later this year and we will get the work done in order to win this contract!

Kind regards

Jenny Carlin

Architectural Assistant

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## Attachments:

|                                              | Advantages for the Consortium                                                                                                                                 | Disadvantages for the Consortium                                                                                                                                                                                                                                   |
|----------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Single Multi-Disciplinary Provider Framework | Recommended by the Latham Report (1994) as a means to enable employers and contractors to work together.                                                      | Not suitable if the Consortium is looking for a simple, easy to use contract as contract administration and project management can prove demanding.                                                                                                                |
|                                              | Agreement exists over more than one project.                                                                                                                  | Not suitable for small projects, or stand alone, one off schemes.                                                                                                                                                                                                  |
|                                              | Separate to any building contract.                                                                                                                            | Efficiency comes from concentrating on quality and certainty rather than from focusing directly on narrow cost cutting, which can be hard to quantise. Key performance Indicators (KPI's) and target will need to be used to measure against co-operative working. |
|                                              | Any building contract can be used for construction or maintenance works.                                                                                      |                                                                                                                                                                                                                                                                    |
|                                              | Not necessarily a contractual arrangement; Can be non binding if the Consortium wishes, allowing them to tender work to consultants outside of the agreement. |                                                                                                                                                                                                                                                                    |
|                                              | Intention is to reduce costs, limit conflicts, and improve efficiency and performance by mutual objectives.                                                   |                                                                                                                                                                                                                                                                    |
|                                              | Flexible for the Consortium as a Framework is more about the way a project is managed than an individual model procurement arrangement.                       |                                                                                                                                                                                                                                                                    |
|                                              | Can apply to all types and sizes of projects, from maintenance and small refurbishment works to the schools' existing buildings, to new teaching blocks.      |                                                                                                                                                                                                                                                                    |
|                                              | Opportunities for innovation in school design, particularly for new builds.                                                                                   |                                                                                                                                                                                                                                                                    |
|                                              | Projects can be delivered quickly,                                                                                                                            |                                                                                                                                                                                                                                                                    |

|                                           |                                                                                                                                                                                                                    |                                                                                                                                                                                  |
|-------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                                           | reducing costs for the Consortium.                                                                                                                                                                                 |                                                                                                                                                                                  |
|                                           | Mechanisms are built into the Framework agreements to avoid conflict and speed up dispute resolution.                                                                                                              |                                                                                                                                                                                  |
|                                           | Consultants/contractors work in collaboration, harbouring strong relationships and teamwork which improves quality. This can also speed up projects.                                                               |                                                                                                                                                                                  |
|                                           | The agreements have a mechanism for "calling off" individual tasks which are then subject to the pre-agreed terms. This arrangement creates a degree of predictability for the Consortium, helping with budgeting. |                                                                                                                                                                                  |
|                                           | The call-off mechanism for works which require quality measures could include a mini design competition, providing (or exceeding) quality for a fixed fee.                                                         |                                                                                                                                                                                  |
|                                           | Following the initial tender, individual projects do not require tender through OJEU, saving time and cost ultimately creating faster project completion for less outlay.                                          |                                                                                                                                                                                  |
|                                           | This method could improve financial and decision making approval chains considering the number of Academies involved.                                                                                              |                                                                                                                                                                                  |
|                                           | Strategic partnering savings of 30% are realistic over time.                                                                                                                                                       |                                                                                                                                                                                  |
| <b>Separate Professional Appointments</b> | Adaptable to a changing market.                                                                                                                                                                                    | If the project is over the threshold, (supplies £113,057, services £113,057, works £4,348,350) each contract will be required to be tendered through OJEU, using time and money. |
|                                           | Does not limit the consortium to an agreement for four years; fees can be tendered and could be more competitive.                                                                                                  | Each separate contract could potentially mean the consortium working with a consultant/contractor who they don't necessarily know. There are no long term relationships.         |
|                                           | Able to tailor each appointment to                                                                                                                                                                                 | The Consortium will not know fees                                                                                                                                                |



|  |                                                                                 |                                                                       |
|--|---------------------------------------------------------------------------------|-----------------------------------------------------------------------|
|  | the individual project.                                                         | until each project is tendered.                                       |
|  | Depending on the contract/appointment used it could be simpler and easy to use. | Decision making could be slow, with each project needing signing off. |

*References:*

Willis, David Chappell and Andrew. 2010. *The Architect in Practice*. Oxford : Wiley-Blackwell, 2010. p 5 and 181

Cousins, M. 2011. *Architect's Legal Pocket Book*. Oxford : Architectural Press, 2011. p 229 and 251

Barton, C. (2012, July). Marketing Lecture RIBA North West Part 3. *RIBA North West Lecture Notes 2012*.

Curry, N. (2012, March). Construction Procurement. *RIBA North West Lecture Notes 2012*.



(Memo to James Noble)

## NDG Architects Ltd

Interoffice memo (email)

---

To: James Noble

Cc:

From: Jenny Carlin

Date: 6<sup>th</sup> March 2013

Re: Mediation

---

James,

I agree – this domestic dispute is not appropriate for a court of law. I have prepared the briefing note you requested and it is attached to this memo. If you have any questions please ask.

I hope the mediation is successful and some agreement is reached. It is always unfortunate to hear about unhappy clients!

Kind regards

Jenny Carlin

Architectural Assistant

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## Briefing Note

Title: Mediation

Compiled by: Jenny Carlin

Date: 7<sup>th</sup> March 2013



*Assumptions: For the purposes of this briefing note I am assuming that Mr Charles, the architect, is chartered member of the ARB and RIBA*

### How the client's claimed would be viewed by the ARB Board

#### The architect did not set out fee or scope of services

This point would be viewed as in breach of Code 4.4, as Mr Charles is expected to ensure that he had entered into a written agreement with the Porshgrunds which covers the scope of the work and the fee or method of calculating it. The fee letter the architect claims to have sent to his client would cover this, by provides no payment schedule. Although the fees are high and out of date (The RIBA no longer publishes fee scales) this does not contravene the code, although could be decided that the architect was taking advantage of a wealthy client.

#### The architect proposed an ambitious scheme which exceeded brief

Under Code 6.2 Mr Charles should have as far as reasonably practical worked in accordance with the time scale and cost limits agreed by the Porshgrunds.

#### Work entrusted to technical member of staff

Even though Mr Charles is a sole practitioner with limited resources, under Code 3.4 and 4.2 he is expected to ensure that all the architectural work on the extension was under his control and management, and that he had suitably qualified staff.

#### Planning consent as refused, yet the architect had not responded

Mr Charles was expected to keep the Porshgrunds informed of the progress to the planning application and any issues which may have significantly affected the quality or cost, Clause 6.3. His is correct in that he has not guaranteed that the proposal would gain planning permission.

#### The architect issued a fee note claiming 75% of fee

Although this is technically not contravening the ARB Code of Conduct, as above the fee and payment process had not been agreed with the Porshgrunds. Under Code 1.1 the architect is expected at all times to act with honesty and integrity and to avoid any actions or situations which are inconsistent with your professional obligations. However to bill a client 75% of the total fee of £90,000, which amounts to £67,500, is quite unreasonable.

#### Refusing to communicate

Under Code 10.1 Mr Charles should have a written procedure for prompt and courteous handling of complaints which is provided to clients, and complaints should be handled 'courteously and promptly' in accordance with the time scales in Code 10.2:

- a) an acknowledgement within 10 working days from the receipt of a complaint; and
- b) a response addressing the issues raised in the initial letter of complaint within 30 working days from its receipt.

This was obviously not complied with.

#### The architect advised the matter would be placed before a court

Mr Charles has not encouraged alternative methods of dispute resolution, such as mediation or conciliation (Code 10.3). This should have also been covered in his written agreement with the Client (Code 4.4). The fact that this has not been followed would potentially be seen as extremely jeopardising to his case.

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### Sanctions

The ARB sanctions are a written warning, public reprimand, fine, suspension, and erasure. ARB Professional Conduct Investigations following a complaint involve a Review (investigations committee, comprises 1 architect and 2 lay persons) then a Public Hearing (professional conduct committee, comprises 1 architect, 1 solicitor and 1 lay person), followed by the Sanction (written warning, public reprimand, fine suspension, erasure). This can then be disputed and go to a Third party review (by the Independent Dispute Resolution Service) or High Court appeal.

### Key points to discuss with each party

#### The Architect – Mr Charles

- Agree on the fee proposal/payment schedule which was proposed.
- Establish the series of events following planning refusal to decide who was at fault.
- Does he have adequate PI insurance to cover any claims and costs.
- Mr Charles claims that the client repeatedly changed the brief – is there a paper trail of this, and can it be proved that he attempted to act, or advised the client appropriately.
- Does he have a complaints procedure?
- What were the reasons for not responding to communication from the client – is there any reason outside of this dispute?

#### The Client – The Porshgrunds

- Outline to the client what Mr Charles was obliged to provide, and agree what was provided in terms of written agreements and how it complied.
- What was the brief given to Mr Charles, and was it agreed in writing?
- Ascertain how the brief changes came about, and how they were communicated to Mr Charles.
- How did Mr Charles deal with their dispute before refusing communication?
- Did they feel that the fees were reasonable and were they aware of any payment provision/schedule?
- Do they feel Mr Charles acted in their best interests, and if not how?

### Conclusion

I assume that this project was undertaken on the Domestic Project Agreement 2010, and that there is no provision for an adjudicator under the Housing, Construction and Regeneration Act 1996: Adjudication is a cheap and easy way for a company to resolve a dispute, and as the client in this case is a 'consumer' to whom the Unfair Terms in the Consumer Contracts Regulations 1999 apply. Dispute through the courts would be very costly, and without mediation and other dispute resolution taking place it is likely that it would be dismissed by a judge. I agree that a court of law is not appropriate for a domestic case of this scale.

The worst sanction that Mr Charles faces, based on precedent of Professional Conduct Committee (PCC) decisions would be reprimand and a fine of around £500 for each offence that the Committee viewed he was in breach of. The fact that he has not responded to complaints within the timescales set by the code will definitely not act in his favour and could make sanctions worse.

The RIBA would also impose sanctions on Mr Charles in addition to any decision by the ARB.

### References:

ARB. (2010). *Code of Conduct 2010*

ARB. (2013). *PCC decisions table [accessed 7<sup>th</sup> March 2013]* <http://www.arb.org.uk/PCC-decisions>

Dobson, A. (2012, March). The RIBA and the architect in practice. *RIBA North West Lecture Notes 2012*.

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(Memo to James Noble)

## NDG Architects Ltd

Interoffice memo (email)

---

To: James Noble

Cc:

From: Jenny Carlin

Date: 6<sup>th</sup> March 2013

Re: Changing Role of Architects

---

James,

The notes you requested are attached. I was considering this question myself recently as when I did my Part 3 exam paper the balance of questions was very different to the past papers I had used for revision.

There was only contract administration question, which could be coincidence, or could reflect the decrease in architects undertaking CA in practice today. In particular, of my peers on my part 3 course a large percentage are not working on traditional contracts and have found the case study a long exercise in comparing their experiences to the SBC. I was pleased that the course director recognised this shift and guidance was given on how to approach projects undertaken on other procurement routes and where the architect is not providing the tradition service.

Anyway, I hope my ideas are what you had in mind. As usual please let me know if you have any questions or would like me to take this further.

Kind regards

Jenny Carlin

Architectural Assistant

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## Briefing note

**Title:** The Changing Role of Architects

**Compiled by:** Jenny Carlin

**Date:** 7<sup>th</sup> March 2013



Differing roles now undertaken by architects:

- BD's survey of employment in architecture has been published today, online (Klettner, 2013). The survey was carried out over a two-week period in February and attracted more than 4,000 responses, 2,180 of which were from qualified architects (Klettner, 2013).
- A third of those surveyed are also working as architects in the wider construction industry, for example with housebuilders and contractors, while 40% are having to make their living from non-architecture-related work (ibid).
- 32% own their own architecture practice, therefore a large proportion of the profession are acting as sole practitioners (ibid).
- Unfortunately a 'role' undertaken by architects is 'unemployed'; 22% of architects currently classify themselves as such (ibid).
- *"Recruiters find architects more resilient, flexible and adventurous"* (ibid).
- Architects have always asked about alternative careers, but they're more serious about it now. The reality is that architecture is such a long education that people don't often look at other industries. We see a lot more architects moving into the developer or contractor side — it's an evolution of the architectural role.
- With the publication of a new plan of work (RIBA Plan of Work 2013) later this year, the industry is evidently moving in line with engineering, QS and non-standard contract types. The traditional 11 work stages will be replaced by seven numbered stages as part of a bid by the institute to enable greater integration across the industry. A review group chaired by Dyer's Dale Sinclair developed the programme, which is part of a 'unified industry structure' supported by the Construction Industry Council. It provides a 'clear information framework' for BIM-enabled projects and be more 'readily adaptable' to varied procurement methods. (Fulcher, M and Mark, L., 2012)
- In February 2011 the RIBA published a study where Building Futures sets out to explore the future role of architects, asking: who will design our buildings in 2025; what roles will those trained in architecture be doing then and how will architectural practice have changed as a result?
- Design-led studios of between 50 and 120 staff will be most at risk from competition by large multidisciplinary outfits which are expected to dominate the future market place for architectural services.
- An influx of Asian companies to the UK could also contribute to the demise of the design-led studio, the report added.
- The report also revealed that the UK demand for architectural services has plummeted 40 per cent in the past three years (Fulcher, 2011).

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- *"[The] long shadow of the gentleman architect still hangs over the profession."*
- In fact the number of female architects is rising; the Architect's Journal Women in Architecture 2013 survey revealed that 20% of British architects are women, a rise of five per cent since 2008 (Waite, R and Corvin, A, 2012).
- Sustainable agenda has more central in all developments, with an increasing number of construction professionals choosing to undertake specialist services in this field (e.g. BREEAM Assessor, Passivhaus designer).
- Architects are also increasingly acting as contactor/developer/consultant to ensure predictable workloads, working in any combination of the above.
- An architect may even act as an estate agent!

How the role of the architect, client and contractor differ within different procurement routes:

#### Traditional Procurement

- Contract example, JCT SBC 2011
- Architect traditionally Contract administrator.
- Acts as an independent party under the contract, issues certificates and makes decisions affecting the programme and costs.
- The architect advises the client to appoint other consultants to deal with specialist items which are not within his or her expertise, e.g. structural calculations.
- Usually acts as lead consultant.

#### Design and Build

- Contract example, JCT DB 2011
- Architect does not act as contract administrator. Instead this role is undertaken by the Employers Agent under the contract. The architect's role is reduced post-contract to providing information, responding to queries and have no role in the issue of certificates.
- This system has grown in popularity due to the allocation of risk in favour of the employer.
- There are variations of the system however under the basic version the contractor is approached directly by the employer. The contractor then will seek an architect to carry out the design.
- Although the architect's role is different from the traditional one, it does not mean that because the contractor is the client that it will not be interested in good architecture (Chappell, 2010 p. 172) . In fact it is in the contractor's interest that the employer is happy, considering he is taking the risk of the project and must comply with the Employer's Requirements.
- A common approach to design and build is for the client to engage the architect to undertake the design, and following tender a novation or consultant switch will occur, where the contractor is obliged to take the design team on board to complete the works.

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- This allows the client to provide details requirements (Employer's Requirements) and will be safe in the knowledge that the design team is engaged under the contractor to completion.

#### PFI Procurement

- As a result of privatisation over the last 25 years the levels of public sector spending has reduced significantly. The balance between publically and privately funded projects has changed further as there have been developments in how public sector works are procured (OJEU). Public/Private collaborations are encouraged.
- Usually a special purpose vehicle (SPV) is set up to obtain finance and carry out the project. More often than not this is a Joint Venture (JV) company.
- The role of the architect is as design and build.

#### Project Management procurement

- The architect is not the leader of the team, and the Project Manager takes this role (who can of course be the architect, who is the most obvious choice, however a separate PM can be appointed).
- The PM is either technical agent of the employer, or the professional with the authority to manage the project.

#### Design and Manage

- Single-point responsibility rests with the architect, being responsible for design of the project and also managing the team and construction process and subcontractors.
- The few architects who become involved in this usually have a background in contracting or similar.
- The architect must be careful to avoid a conflict of interest (see below).

How the relevant codes of conduct aim to protect our clients and maintain our professionalism as architects:

#### ARB Code of Conduct 2010

- Misleading statements:
  - *1.2 You should not make any statement which is contrary to your professional opinion or which you know to be misleading, unfair to others or discreditable to the profession.*
- Dealing with conflicts of interest:
  - *1.3 Where a conflict of interest arises you are expected to disclose it in writing and manage it to the satisfaction of all affected parties. You should seek written confirmation that all parties involved give their informed consent to your continuing to act. Where this consent is not received you should cease acting for one or more of the parties.*
- Business style:
  - *3.3 The business style of a practice should not be misleading.*

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RIBA Code of Professional Conduct provides this through integrity (Principle 1), competence (Principle 2) and relationships (Principle 3).

- Declaring conflicts of interest:
  - *RIBA Code of Conduct Principle 1*
  - *Guidance note 1.6 Members involved in any other business activity which might impact, even indirectly, on their practice of architecture, must declare that involvement to the client or employer before any contract is finalised. If the other activity is unacceptable to the client members should either withdraw from it during the engagement, or decline the commission; if the other activity is unacceptable to the employer, members must either withdraw from it during the employment or resign from/refuse to accept the job.*
- Declaring extent of expertise to clients:
  - *RIBA Code of Conduct Principle 1*
  - *RIBA Code of Conduct 1.4 Members should seek appropriate advice when faced with a situation which they recognise as being outside their own or their practice's experience, knowledge or competence.*
  - *RIBA Code of Conduct 1.7 Members must not undertake any architectural functions which require independence and impartiality (such as the issue of Architect's Certificates) if they are connected to the contracting party.*
- Recognising the need for external advice when the architect is approached or dealing with a service in which is outside their experience:
  - *RIBA Code of Conduct Principle 7*
  - *7.8 Recognising the need for external advice - Members should seek appropriate advice when faced with a situation which they recognise as being outside their own or their practice's experience or capabilities.*
- An architect choosing to act as developer/consultant/contractor/etc. simultaneously must take care that their professional integrity is preserved. It is important that a client properly understands that, for example, such an architect cannot act as a contractor for a development and at the same time give truly independent advice on that same development as an architect (Architect in Practice page 79).
- In terms of the use of the RIBA and ARB crests on brochures, the RIBA Code of Conduct states that for a chartered architect within the private sector '*the crest may be used on stationary and in publicity, provided that the business to which it relates is one / more of the following: consulting architectural services / development / contracting (including design and build).*' Guidance Note 3, Annex 'Business Names' Clause 10.i.
- Both codes include the need for professional indemnity insurance (RIBA Principle 2, Guidance note 5, ARB Standard 8) and architects must keep these up to date.

#### References:

RIBA *Code of Professional Conduct 2005 and Guidance notes*

ARB *Code of Conduct 2010*

Chappell, D. 2010. *The Architect in Practice*. Oxford : Wiley-Blackwell, 2010.

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(Memo to Belinda Carter)

## NDG Architects Ltd

Interoffice memo (email)

---

To: Belinda Carter

Cc: Sue Allen

From: Jenny Carlin

Date: 6<sup>th</sup> March 2013

Re: Luxury apartments in Madchester

---

Belinda,

Thank you for your email. I assume the project is notifiable under the Construction (Design and Management) Regulations 2007.

As a designer our duty is to give proper advice to the client regarding the appointment of a CDM Co-ordinator. We need to let the client know we cannot begin work until we have made them aware of their duties. We also need to be reasonably satisfied that the client has understood the advice we have given.

As design work has already started, Mr Hughes as the Client is already deemed to be the CDM-C and subject to their duties. I have written to him in this effect. The HSE advise that the CDM-C should be appointed as early as possible, and before initial design work or other preparations for construction work have been completed. 'Initial design work' includes feasibility studies; therefore as we are reaching the end of Stage D we should consider this passed.

As we are currently short of work we could consider discussing extending our service to cover this, and negotiating a fee. While there is no legal bar to designers carrying out the role of a CDM-C, it is essential that they have sufficient competence and knowledge of the legal duties of a CDM-C to carry out the role successfully. On larger projects, it may simply be unworkable for the designer to carry out both jobs because of its complexity.

Lastly, we should inform PI insurers of a potential dispute. It is better to be covered in these circumstances and notifications should not affect our premiums. Conversely our broker will be more receptive to a risk aware architect.

I have copied Sue into this email - maybe as a thought we should consider our QA procedure to prevent projects progressing so far without meeting the relevant procedures.

I have left a copy of the draft letter and hazard and risk assessment (HIRA) on your desk for your comments, and have filed copies appropriately within the electronic job file.

Kind regards

Jenny Carlin

Architectural Assistant

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*References:*

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HSE. (2013). Construction design and management (CDM) [accessed 7<sup>th</sup> March 2013]  
<http://www.hse.gov.uk/construction/cdm.htm>

*Assumptions:**The project is notifiable under CDM 2007.*

(Letter to Client)



NDG Architects Ltd  
Wharf Mill  
Paccadilly  
Madchester  
MAD PPA

Mr Hughes  
[insert client's address]

Our ref: 2013/28

7<sup>th</sup> March 2013

Dear Mr Hughes,

**Re: Luxury Apartments in Madchester – CDM requirements**

I have been asked to write to you by Belinda Carter who is representing NDG Architect's on your project stated above.

It is my understanding that you are reluctant to appoint a CDM Coordinator; however under the Construction (Design and Management) Regulations 2007 it is your legal duty to do so. The role of CDM Co-ordinator is to advise you on health and safety issues during the design and planning phases of construction work. Ultimately better planning and design reduces site accidents which in turn reduces site delays.

They should advise you about selecting competent designers and contractors, help identify what information will be needed by them. They will also co-ordinate the arrangements for health and safety of planning and design work, ensure that HSE is notified of the project, assist with the requirements to ensure suitable Pre - Construction Information is available.

Following start on site they will advise on the suitability of the Construction Phase Plan, prepare a health and safety file (information for you to enable future cleaning, maintenance and alterations to be carried out safely).

Under the regulations you have a role as a client and are accountable for the impact you have on health and safety. You do not have to do this yourself, and do not need to carry out detailed checks and get involved in the construction work itself. Health and safety on site is a matter for the contractor, and the duty to reduce risks through design is a duty of the designer. Clients simply have to make sure that the initial project

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management arrangements are maintained. You can engage someone to carry out some of the client functions on your behalf, but the legal responsibility for compliance with the Regulations stays with yourself.

It is your duty to ensure that the competence and resources of those appointed are checked, and to allow sufficient time and resources for the project.

Suitable management arrangements must be in place and there should be adequate welfare facilities on site. Workplaces must be designed correctly – a design for a workplace should comply with Workplace (Health, Safety & Welfare) Regulations 1992 – this is a client duty.

You must provide key information to designers and contractors, and to arrange for any gaps in information to be filled e.g. commissioning an asbestos survey. You have a duty to ensure that all those involved in the work co-operate and co-ordinate their activities.

The focus should be on establishing a competent project team early on which fosters a culture of co-operation and integration, and the appointment of a CDM Co-ordinator and to provide him with information is key to this. You must also retain and provide access to the health and safety file and revise it with any new information.

If no CDM Co-ordinator or principal contractor is appointed (i.e. as at the time of writing) then the consequences are that you, the client will be deemed to be the CDM coordinator & / or principal contractor and subject to their duties in addition to your own. As design work has already started then this is already the case and will remain until another party is appointed. Please take this letter as notice from us that you are currently acting as CDM Co-ordinator.

In later stages of the project, if a JCT SBC/Q 11 construction contract is used, the contractor has grounds for termination for the employer not complying with CDM regulations under Clause 8.9.4 Default by Employer.

There may be no need to appoint a separate, independent person to the role, and perhaps another member of the design team could fulfil the duties, saving on fee expenses.

We should discuss the type of Health and Safety File you would prefer – perhaps the majority of it could be collected by the Principal Contractor reducing the time needed by the CDM Co-ordinator. The CDM Co-ordinator has to prepare the Health and Safety File but there is no reason why the information is not provided by others in a form which requires little input from the CDM Co-ordinator.

It is worth noting that a criminal record for failing to discharge the duties of the CDM Co-ordinator will stay on your records long after the project has finished. You are legally responsible for ensuring that you comply with the Client duties under CDM 2007 and if the CDM Co-ordinator can show that they have performed their duties diligently they may not necessarily be implicated if there was any subsequent prosecution for non-compliance with CDM.

As Designers under the CDM 2007 regulations, we note that this letter informs you, the client, that work cannot begin until you have made them aware of your duties. We need to be satisfied that you have understood the advice you have given, and therefore request that if you have any questions please get in touch by letter.

I hope this information is helpful in progressing the apartments, and this issue does not delay the RIBA Stage D drawings being signed off.

NDG Architects Ltd

**Directors** James Noble & Belinda Carter | **Associate Directors** Michael Hart & Sue Allen  
**Registered at** NDG Architects, Wharf Mill, Paccadilly, Madchester, MAD PPA | **Company No** 37583  
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If you still dispute this matter I would suggest a meeting should be arranged at the earliest possible convenience to discuss how this item can be circumvented without causing unnecessary delay to the project.

Yours sincerely,

Jenny Carlin

**Architectural Assistant**

*For and on behalf of ndg architects*

*References:*

Coomber, D. (2012, July). Healthy Design and Creative Safety in Construction. *RIBA North West Lecture Notes 2012*.

Perry, P. (2008) CDM Q&A. *Oxford: Butterworth-Heinemann. p74-75*

HSE. (2013). Construction design and management (CDM) [accessed 7<sup>th</sup> March 2013]  
<http://www.hse.gov.uk/construction/cdm.htm>

Hazard identification and risk assessment schedule

Construction (Design & Management) Regulations 2007

HIRA:001: 2007



NDG Architects Ltd.

Package:

Package No:

Sheet no. 1 of 2

|                           |                                          |                               |
|---------------------------|------------------------------------------|-------------------------------|
| Project no: 2339          | Project: Luxury Apartments in Madchester | Revisions: - 07/03/13 Created |
| Date: 07/03/13            | Client: Mr Hughes                        |                               |
| Prepared by: Jenny Carlin |                                          |                               |

| TASK OR WORKSTAGE |                                                                                          | HAZARD & RISK IDENTIFICATION        |                                                                                                               | ASSESSMENT<br>(See footnote) |   | DESIGN MITIGATION                                                                                                                                                                                                                                                                                                                                |  | SIGNIFICANT RESIDUAL RISK |                       |
|-------------------|------------------------------------------------------------------------------------------|-------------------------------------|---------------------------------------------------------------------------------------------------------------|------------------------------|---|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|---------------------------|-----------------------|
| Ref no.           | Element/activity                                                                         | Identify Hazard                     | Identify Risk                                                                                                 | L                            | S | Identify measures taken                                                                                                                                                                                                                                                                                                                          |  | Yes/No                    | Reference in H&S File |
| 00.00             | CONSTRUCTION AND MAINTENANCE: MANSARD ROOF, PARAPET, GUTTER AND WINDOWS, INC DEMOLITION. |                                     |                                                                                                               |                              |   |                                                                                                                                                                                                                                                                                                                                                  |  |                           |                       |
| 00.01             | Construction                                                                             | Working at height                   | People or objects falling from height                                                                         | H                            | H | Secure scaffolding and provide fall restraint systems. Appropriate enclosure to adjacent footpaths to be provided. Agree scaffolding requirements at contract stage, including appropriate load rating and provision of loading bays. Contractor's supervisor to check with the site manager that the correct scaffold is provided and inspected |  | No                        |                       |
| 00.02             | Cleaning and maintenance of windows and façade elements                                  | Cleaning/maintenance work at height | People or objects falling from height                                                                         | H                            | H | Employ fall restraint system or cradle for maintenance use. Guidance to be included in the Health & Safety file.                                                                                                                                                                                                                                 |  | Yes                       |                       |
| 00.03             | Site traffic and access                                                                  | Vehicle strike / collision          | Danger to pedestrians, vehicles on adjacent pedestrian footpaths and public highways throughout construction. | M                            | H | Appropriate signage, supervision and mirrors for oncoming traffic provided. Coordination with highways authority, guidance to be included in the Health & Safety File                                                                                                                                                                            |  | No                        |                       |
| 00.04             | Structural of the mansard roof/parapet                                                   | Building part-collapse              | Danger to site operatives / pedestrians during demolition works                                               | H                            | H | Structural survey to be undertaken prior to demolition. Appropriate enclosure installed and supervision ensured during demolition. Evacuation procedure in place and included in the Health & Safety file                                                                                                                                        |  | No                        |                       |

**Risk Assessment:** L = Likelihood of harm occurring S = Severity of harm. Record each as High (H), Medium (M) or Low (L).  
**Design Mitigation:** All risks, including those that are normal to the type of work, should be avoided or reduced, as far as reasonably practicable, by changing the design.  
**Significant Residual Risks:** A residual risk is one that remains after design mitigation. Whatever its likelihood or severity may be, a residual risk is significant only if it is likely to be considered unusual, unexpected, or abnormal by a competent contractor.

## Hazard identification and risk assessment schedule

## Construction (Design &amp; Management) Regulations 2007

HIRA-001: 2007



NDG Architects Ltd.

Package:

Package No:

Sheet no. 2 of 2

Project: Luxury Apartments in Madchester

Revisions: - 07/03/13 Created

Date: 07/03/13

Client: Mr Hughes

Prepared by: Jenny Carlin

| TASK OR WORKSTAGE |                   | HAZARD & RISK IDENTIFICATION                               |                                                                     | ASSESSMENT<br>(See footnote) |   | DESIGN MITIGATION                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |        | SIGNIFICANT RESIDUAL RISK |                       |
|-------------------|-------------------|------------------------------------------------------------|---------------------------------------------------------------------|------------------------------|---|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|---------------------------|-----------------------|
| Ref no.           | Element/activity  | Identify Hazard                                            | Identify Risk                                                       | L                            | S | Identify measures taken                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Yes/No | Yes/No                    | Reference in H&S File |
| 00.05             | Manual handling   | Regularly lifting/<br>carrying heavy or awkward<br>objects | All workers could suffer from<br>back injury and long-term<br>pain. | H                            | M | Materials to be transported and lifted to scaffold using<br>telehandler provided by principal contractor.<br>Provision of lifting bay agreed with principal contractor.<br>Materials to be covered with tarpaulin when stored on<br>site to prevent taking up water.<br>Spot boards to be raised with blocks to easy working<br>height.<br>Trolley to be used for moving heavy materials around<br>the scaffold lift.<br>Check at tender stage for items over 20 kg and make<br>arrangements. | No     | No                        |                       |
| 00.07             | Welfare/first aid | Good facilities help prevent<br>dermatitis etc.            | Skin problems, and access to first aid and<br>facilities            | M                            | L | Principal contractor will have facilities on site by the<br>time works start, including:<br>flushing toilet; hot and cold running water, soap, towels<br>and full-size; washbasins;<br>heated canteen with kettle etc; first-aid equipment;<br>principal contractor will arrange clearing and ensure the<br>necessary electrical and heating safety checks are made;<br>and<br>site agent is appointed person for first aid                                                                   | No     | No                        |                       |

## References:

HSE. (2013) Example risk assessments. [accessed 7<sup>th</sup> March 2013] <http://www.hse.gov.uk/risk/casestudies>HSE. (2013) Five steps to risk assessment. [accessed 7<sup>th</sup> March 2013] <http://www.hse.gov.uk/risk/fivesteps.htm>**Risk Assessment:** L = Likelihood of harm occurring S = Severity of harm. Record each as High (H), Medium (M) or Low (L).**Design Mitigation:** All risks, including those that are normal to the type of work, should be avoided or reduced, as far as reasonably practicable, by changing the design.**Significant Residual Risks:** A residual risk is one that remains after design mitigation. Whatever its likelihood or severity may be, a residual risk is significant only if it is likely to be considered unusual, unexpected, or abnormal by a competent contractor.



(Memo to James Noble)

## NDG Architects Ltd

Interoffice memo (email)

---

To: James Noble

Cc:

From: Jenny Carlin

Date: 7<sup>th</sup> March 2013

Re: Quality Assurance

---

James,

My report is attached to this memo and I have filed a copy appropriately within the electronic QA file (as per our office manual!).

I hope the information is what you require, but please let me know if you have any questions.

Kind regards

Jenny Carlin

Architectural Assistant

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# Report



**Title:** Quality Assurance

**Compiled by:** Jenny Carlin

**Date:** 7<sup>th</sup> March 2013

1. This report has been compiled to review ISO 9001 and Investors in People (IIP) procures at NDG Architects Ltd.
2. ISO 9001:2008 Quality management systems
  - 2.1. ISO 9001 is an industry wide standard to increase efficiency and productivity. It covers the four main areas of management responsibilities, resource management, product realisation and management organisation. By these methods a company can evaluate their performance, enabling them to learn from their experiences and become more productive.
  - 2.2. The standard sets out in detail the requirements for meeting the standard, but the following are central concepts to its formulation ([www.bsigroup.com](http://www.bsigroup.com)):
    - Identify the processes required for the quality management system, and how they will be applied throughout the business.
    - Determine the order and relationship of these processes.
    - Determine criteria and methods that both control these processes and ensure that they are effective.
    - Ensure availability of resources and information necessary to support the implementation and monitoring of these processes.
    - Monitor, measure and analyse these processes.
    - Implement actions necessary to achieve planned results and continual improvement of these processes.
3. Pros of ISO 9001:2008 Quality management systems
  - 3.1. Processes are used continually in the architect's daily work, from the naming of a drawing and filling in of a drawing register to the review of a design before taking it to the next stage.
  - 3.2. Standardisation and auditing of processes help ensure that products and services meet client expectations, ensure that work is done right the first time and a culture of continuous improvement is introduced to the practice. All of which give added value to the product.
  - 3.3. It gives structure to and demonstrates compliance with statutory legal requirements, such as COM and health and safety.
  - 3.4. An Office Handbook is essential and should include: Administrative procedures and protocols, e.g. job code numbering, time sheet monitoring, drawing styles. Communications/ internet/intranet / e-

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mail/electronic drawing issue systems, paper management, archives, dealing with mail and telephone, expenses, monitoring/claims.

- 3.5. One of the major requirements of the standard is control of the documents produced; this covers keeping records and ensuring that all documents used are current to ensure conformity of standards. This is invaluable to practice and if a document can be found quickly it can save cost and time.
- 3.6. The RIBA also has an online QA toolkit, available for members to download, which can be used as the basis for creating a QA system that relates the requirements of the standard to the RIBA Outline Plan of Work 2007 and architectural practice in general.
- 3.7. Certification can lower PI insurance premiums and risk of claims.

#### 4. Cons of ISO 9001:2008 Quality management systems

- 4.1. Needs to be assessed and ultimately approved under BS EN ISO 9001. Only large RIBA Chartered practices (51+ staff) are required to have an externally-certified BS EN ISO9001-2000 Quality Management System in use. This could be based on an externally-certified system developed from the RIBA Quality Management Toolkit or another externally-certified equivalent system (The ISO does not give certification itself). However many public sector procurement bodies insist that practices are certified for quality management by UKAS accredited certification bodies.
- 4.2. The standard requires a commitment from senior management in creating the system and being involved in its ongoing implementation. This management input can focus attention on strategic business philosophy as it involves establishing the quality policy, ensuring the stated objectives are met by reviewing on a regular basis and ensuring that the resources are available to meet the objectives. This could be an onerous task, and decrease the efficiency of a highly paid director further.
- 4.3. The certification must be maintained throughout the life of the company, which can lead to unforeseen expense.

#### 5. Investors in People (IIP)

- 5.1. IIP works with a company, encouraging involvement of staff and review of performance to improve financial performance, productivity and profitability. It can help to manage change, engage with your employees and fine-tune leadership capabilities. The standard rests on three principles: plan, do and review.

#### 6. Pros of Investors in People (IIP)

- 6.1. Improves financial performance, profitability, motivation and employee engagement, productivity, ideas and innovation, quality, and loyalty and advocacy.
- 6.2. Promotes customer satisfaction.
- 6.3. The practice will give public recognition as the logo can be used on company literature.
- 6.4. Aims to reduce sickness, absence, staff turnover, recruitment costs and agency cover costs. An office manual would outline this information to staff, including holidays, sickness etc. Policy Documents include health and safety, harassment and bullying, complaints procedures, disciplinary procedures, employment matters (legal requirement), staff induction
- 6.5. Flexible regardless of size or sector
- 6.6. Online tools and resources can help, and are free.

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## 7. Cons of Investors in People (IIP)

- 7.1. The IIP standard framework outlines what is needed to be achieved but does not prescribe how.
- 7.2. Takes time from staff to ensure it is being implemented correctly.
- 7.3. Assessments cost around £550 per day, and the length depends on the company's size. It can take up to a year to complete the process.

## 8. First-hand experience

- 8.1. My experience of quality assurance has been from a wide range of environments, from small practice/sole practitioner to medium and large practice. Smaller practices generally compile their own quality assurance procedures which are in line with the RIBA Project Quality Plan for Small Projects (PQPSP) and industry standards and work towards achieving ISO 9001, this seemed robust enough for the types of projects.
- 8.2. I have noticed that the scale of the practice bears no relation to the efficiency of its processes. The quality of information and involvement of staff is a much bigger indicator.
- 8.3. Working for a sole practitioner staff members are made to feel part of a family which improves morale and makes them part of a team. This potentially drives them to work harder for the company as they feel they have a vested interest. Although the number of processes is smaller, and projects have less QA involved, the information tends to be communicated to staff more effectively on a more one-to-one basis.
- 8.4. The quality of CPD training is very varied throughout my experience. I have found a 'lazy' tendency for practices to invite suppliers or manufacturers into the practice for 'lunchtime lectures', where lunch is provided. Often these feel like a hard sell exercise, with a small amount of information in order for them to be accredited by the RIBA. The guests invited to speak need to be vetted and a higher quality of education provided. To attend an hour lecture which you learn little from is inefficient and costs money.
- 8.5. Large projects I have worked on, including airports, often have complicated QA systems, involving procedures implemented by a number of parties, for example the architect's in-house CAD system, filing and document numbering, and BAA airports conflicting method. The quantity of information involved and numbers of architects in teams (often 5 to 10) require that a structured, understood QA system is more important than usual. However the documentation provided is often onerous and complicated.
- 8.6. In preparing my Part 3 submission I have found electronic and paper filing is often not adhered to, particularly by the busy directors. If someone was to take over the project, a lack of contract information, brief, client details and status could be devastating to maintaining a professional service. Paper contract files are locked away, however electronic information is not provided for the project team: even a Part 1 architectural assistant or technician may need to be aware of the contract and procurement method in order to understand their role in the wider team.
- 8.7. A process I came across at an award-winning medium-sized central London practice was a weekly office meeting. A director was responsible for collating an agenda and chairing the meeting, and lunch provided by a staff member on a rota (which became very competitive!). Human Resources, CPD and notices were discussed, and staff achievements were recognised, new starters introduced and updates were presented to staff over the table, which was a very relaxed but well organised affair. The entire staff was in attendance, and absentees were recognised (and their safe recovery/ impending parenthood etc. recognised). This was the most successful practice I have observed in maintaining staff morale and keeping them aware of issues and events.

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### 9. Conclusion

- 9.1. NDG Architects Ltd have had ISO 9001 and IIP procedures in places for three years with no major benefits. As a medium sized practice (classed by the RIBA as 11 to 50 staff) we should use the RIBA Quality Management Toolkit on all projects.
- 9.2. These accreditations are beneficial to the practice as we have the option for answering public tender invitations through OJEU, increasing our work load.
- 9.3. We need to review how the current QA systems are being implemented in the practice to improve efficiency and check they are being applied correctly. If we are having no benefits then we need to ascertain the cause.
- 9.4. There are a number of points which we should investigate to improve implementation, which are fundamentally productivity and work ethos of the staff:
  - 9.4.1. Staff should be working together on a project and understand what role they are undertaking, what they are producing and why. Time constraints must be understood.
  - 9.4.2. We could consider the use of incentive to improve productivity, although not financial.
  - 9.4.3. Boosting moral increases motivation, and when forming a business plan all levels of staff should be involved. This would increase a feeling of aspiration and team work.
  - 9.4.4. Training can be provided which is of good quality – this would continually improve knowledge and subsequently efficiency.
  - 9.4.5. Monthly or weekly general office meetings can be used to discuss progress, and to highlight staff achievements. Recognition would improve moral significantly.
  - 9.4.6. Regular staff reviews or appraisals help directors to keep in touch with their staff and to review progress.
  - 9.4.7. Our Office Manual and New Starters Induction Pack may need review. Concise, easy to find information needs to be accessible to the whole practice from their first day of employment with us.
- 9.5. Also to note: If we intend to continue answering OJEU tender invitations, we should additionally check the practices' PI cover is sufficient for public projects (as this can sometimes prevent smaller practices tendering).

End of report

### *References:*

- Ware, S. (2012, July). Starting a Practice: Business Management. *RIBA North West Lecture Notes 2012*.
- RIBA *Chartered Practice Manual 2010-2011*
- BSI. (2008). BS 9001:2008 Quality management systems – requirements. s.l. : BSI, 2008.
- RIBA. (2010). Architect's Handbook of Practice Management Eighth Edition. London: RIBA Publishing 2010.
- UK Commission for Employment and Skills. (2013). Investors in People. [accessed 7<sup>th</sup> March 2013]  
<http://www.investorsinpeople.co.uk/Pages/Home.aspx>

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(Memo to James Noble)

## NDG Architects Ltd

Interoffice memo (email)

---

To: James Noble

Cc:

From: Jenny Carlin

Date: 7<sup>th</sup> March 2013

Re: Residential Care Home

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James,

This is complex situation and there are a lot of questions here to be asked, however I have attempted to come to a resolution.

### Subcontractors

Firstly, by not paying the sub-contractors Breakaridge Construction Ltd it does suggest that the company is in some financial trouble, or there is an on-going dispute that we are now aware of. The JCT standard building contract (2011) provides for interest due on any unpaid amount subject to the contractor failing to pay a sum due (Clause 3.9.2.4).

### Insolvency

SBC11 defines insolvency in Clause 8.1 as when the party enters administration or a winding up order is made against it. Currently this is not the case so there are no grounds for termination under Clause 8.5 (insolvency of contractor).

Breakridge Construction is a Limited Company therefore the liability of the members is limited to their stakes in the company, essentially protecting their personal assets from their professional liability. The financial information of the company will be publicly available however through Companies House. If the debt faced is greater than the company's assets, the company can be wound up and the shareholders have no further liability. However if the company has been trading when insolvent which is a breach to UK legislation, 'Wrongful Trading, Insolvency Act 1986'. The Directors become individually responsible and can be prosecuted.

As a Public Company Invest PLC's shares are held by members of the public having been floated on the stock market. When a company goes into compulsory liquidation, the powers of its directors cease and they are

automatically dismissed from office (*Measures Brothers Ltd v Measures* [1910] 2 Ch 248). As a former director of a company that is being wound up, you may be required to assist the liquidator and to provide a statement of the company's assets and liabilities. [<http://dispute.practicallaw.com/8-502-2031>]

Cash-flow problems for these companies can affect those who are in contract and owed monies to: NDG Architects may be taken into bankruptcy with them, a collapsing 'pack of cards' effect.

A creditor is entitled by law to petition for the compulsory liquidation of a company - a compulsorily wind-up order. However the creditor would not necessarily be paid first, as banks and Inland Revenue may be owed large debts. Claims by unsecured creditors are paid on a *pari passu* basis ("Equal in right of payment". The *pari passu* principle means that all unsecured creditors in an administration or a liquidation must share equally any available assets of the company, or any proceeds from the sale of any of those assets, in proportion to the debts due to each creditor. It is one of the most fundamental principles of insolvency law.)

If the parent company (Invest PLC) goes into administration, an administrator would be appointed and its assets sold to raise funds. It is likely that Breakridge Construction would be sold off, taken into administration also or its order books taken over.

### Letter of Intent

A Letter of Intent is a document that sets out details of an agreement between two parties to enter into a contract before an agreement is finalised. It is often used to prevent delay at the start of a project which can prove beneficial when there is a long lead in time or lengthy delays.

The effect of a letter of intent depends on the wording and may have no binding effect, and sometimes gives rise to contractual rights or obligation. It can state that there will or may be a contract in the future, and hence can be treated as indicating that there is no such contract at present.

Issuing a LOI for a sum of £210,000 has entered the contractor and the client into a contract for this sum and scope. Considering that a contract is due to be signed tomorrow it would not be advisable to continue in this manner, and a LOI should definitely **not** be amended. If required a **new** letter should be issued for the extended period, however I technically we would insist that the contract is signed. The value of work completed is still within the value stated in the LOI so we do not need to come to a hasty decision.

### Parent Company Guarantee

PCGs are provided by either the contractor's immediate parent or other holding company and operate as a guarantee to ensure a contract is properly performed and completed. In the event of a contractor default, the parent is obliged to remedy the breach. If the contractor is no longer able or willing to continue with the works, the parent will be obliged to meet all the contractor's obligations and complete the works to the standard specified in the terms of the original contract [1].

### Performance Bonds

PBs are typically provided by banks or insurance companies. They give the employer a guarantee of payment up to a stated amount of money should they suffer a loss as a result of the contractor's breach of his contractual obligations (the industry standard is 10% of the initial contract sum [ibid]).

PB gives comfort of being a payment guarantee from an independent third party, whereas the strength of a PCG is directly related to the financial covenant of the parent. A contractor will normally charge a premium

for the provision of a PB and does not guarantee completion of the project, just recovery of financial loss up to a stated maximum amount.

They only operate in the period in which the contractor has immediate obligations to carry out the works in question, therefore in this case could be limited to the value of the LOI if it is extended.

The event of insolvency alone will not necessarily give rise to payment entitlement under a standard unamended Association of British Insurers form of PB, as this may be treated as an event terminating the main contract. It is notoriously difficult to obtain payment under a PB, as the breach of contract would need to be upheld either in adjudication or court proceedings, therefore I would recommend that we should not go ahead with this offer.

Under the JCT form, insolvency is not initially generally a breach of contract and it is for the employer to decide to terminate. Therefore, the developer will not be entitled to call upon the bond or guarantee immediately upon insolvency; he will have to wait until another contractor has been appointed and those works are complete and the final accounting has happened. To get around this insolvency should be expressed as an event of default.

The key issue on performance bonds is whether or not the bond is actually a conditional bond i.e. default bond or an on-demand bond.

If the latter on-demand bond constitutes a primary obligation which is wholly independent of the underlying building contract or development agreement and will not ordinarily be reduced by contractual defences operating at the building contract level, an on-demand bond will.... *"on demand, I the bondsman will pay you"* or it is more likely to say *"I will pay you if you provide me with the following documents"*. The documents will usually include a statement by the employer that the contractor is in breach and that loss has been suffered by the employer. [2]

## Actions

In my opinion the follow actions are feasible:

- Terminate any agreement, and advise the employer to withdraw from signing the construction contract following the expiry of the Letter of Intent. As the LOI is limited to the value of the works almost completed this would not constitute the termination of a contract. The employer would then need to re-tender the works, however as they are not far progressed this may be the lowest risk and quickest option. We would need to negotiate further fees for repeating RIBA Stages H and J with the client.
- Accept the Performance Bond and ensure that it is an on-demand bond and the documents required are acceptable to NDG. Considering the precarious financial situation of the parent company this is likely to end with a claim, and would be high risk to the employer. This would be detrimental to Breakaridge Constructions cash flow, however in this case we would have to act in the best interests of our client. Accepting a performance bond could create a long running dispute resolution case if payment could not be sought, and extensive distress to all parties. In my opinion we should take the route with least long term risk. If we were to go ahead with this option, following any bond we should check whether or not a contractor is bonded by asking to see the contractor's bond number and certification proving that it exists.

Therefore I have draft a letter to the client with this in mind, and have advised that he should halt the construction contract and re-tender the works. Unfortunately this will delay completion, however I feel that the other option could potentially have worse ramifications. This is the most predictable action to take, and

prevents dispute. It may be the case that an appropriate contractor can be appointed from those who originally tendered for the project. This would have the advantage that they would be familiar with and already priced the contract.

I have left a copy of the draft letter on your desk for your comments or to be signed, and have filed a copy appropriately within the electronic job file. I hope the actions are appropriate, if you have any further questions or feel this could be dealt with differently please don't hesitate to ask. We should also inform our PI insurers in case of a dispute.

Kind regards

Jenny Carlin

Architectural Assistant

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**Web:** [www.ndgarchitects.co.uk](http://www.ndgarchitects.co.uk)

#### *References:*

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*Study group notes and practice papers*

## (Letter to Client)



Client's Name  
Client's Address

Our ref: 2013/28

7<sup>th</sup> March 2013

SPECIAL DELIVERY

Dear Sirs,

**Re: Residential Care Home**

Following a meeting with the contractor on the above project, we are concerned about the financial stability of the company and parent company.

The project is currently operating under a Letter of Intent and a contract is due to be signed tomorrow, however we feel on review of the situation you should take immediate action to reconsider.

The contractor has offered a Performance Bond to guarantee the works, however it is in our opinion that this would be a high risk offer to accept as it may not ensure that any losses are covered.

We would recommend that you do not sign a contract with Breakaridge Construction Ltd, and consider ending your involvement with the expiration of the Letter of Intent. The project can then be re-tendered which we would be happy to undertake for an appropriate fee. It may be the case that an appropriate contractor can be appointed from those who originally tendered for the project. This would have the advantage that they would be familiar with and already priced the contract.

It is of our opinion that this would cause the least disruption to the works, and although completion would be delayed you could be comfortable that the programme is predictable. This is also likely to be the lowest cost option, as re-tendering later in the construction programme a contract will have been signed.

If you do decide to proceed with the contract, the JCT SBC11 provides for termination at the default of the contractor, however it is for the employer to decide to terminate and does not happen automatically. You may

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not be entitled to call upon the bond immediately upon insolvency and may have to wait until another contractor has been appointed, those works are complete and the final accounting has happened.

If you dispute this matter I would suggest a meeting should be arranged at the earliest possible convenience to discuss how this item can be circumvented without causing unnecessary delay to the project. Please get in touch by telephone if you would like to discuss matters urgently.

If you decide to sign the contract our scope of service to you will not change, and we will do what we can to try and help to mediate the situation so that it is resolved in the best way possible and that all involved are aware of their responsibilities and rights under the contract.

Yours faithfully,

James Noble

**Director**

*For and on behalf of ndg architects*

cc. Clerk of Works, CDM Co-ordinator, Structural Engineer, M&E Engineer

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